Adjudicating Muslimness: Islamophobia and the Limits of Swedish Law

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ABSTRACT: Since the late 2010s, Swedish Muslim civil society has pivoted from conventional political contention to courtroom strategies to contest Islamophobia. This article asks why, if courts are imagined as neutral rights-protecting forums, litigation has so often produced losses that normalize contested practices, from funding denials and "neutrality" bans on hijab to the permissibility of Qur'an burnings and closures of Muslim schools. We analyze four "Muslim cases" across administrative, civil, and criminal law and show how adjudication frequently effaces Islamophobia's structural character by translating claims into individualized legal boxes: religion, ethnicity, public order, or offender motive. Drawing on Critical Legal Studies and Critical Race Theory, we trace three misfits in Swedish law: fragmented normative coverage (e.g., "ethnicity" replacing "race," "religion" undefined), a motive-centric hate-crime design with thin guidance, and broad judicial discretion that invites common-sense heuristics. These features, interacting with securitizing social imaginaries, render evidence of racialized anti-Muslim harm legally illegible, producing outcomes that appear neutral yet substantively disadvantage Muslims. Conceptually, we theorize how courts' individualizing grammar depoliticizes structurally produced harms; empirically, we map recurring interpretive moves that sideline Muslimness. Normatively, we outline context-sensitive doctrinal and procedural adjustments—treating Islamophobia as a key contextual factor in proportionality, sharpening evidentiary standards for motive, and recalibrating indirect discrimination toward accommodation.

KEYWORDS: Islamophobia; Sweden; courts and adjudication; discrimination law; hate-crime motive; structural racialization

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INTR0DUCTI0N

Since the second half of the 2010s, Swedish Muslim civil society actors have deliberately shifted from traditional political avenues to litigation on issues linked to Islamophobia (Kolankiewicz and Sager 2024, 336–60; Abdullahi 2024, 250–70; Sager and Kolankiewicz 2024, 534–53). This strategic reorientation responds to a political milieu in which anti-Muslim sentiment has become electorally profitable and structurally embedded: parties can accrue benefits by signaling distance from Muslim minorities, while everyday institutions reproduce racialized hierarchies (Regeringskansliet 2016, 10; Government Offices of Sweden 2024, 12; Bonilla-Silva 1997). As a result, classic repertoires of contention—demonstrations, petitioning, picketing, and representation—have narrowed for Muslim organizations and advocates (Sager and Kolankiewicz 2024, 539–43).

Against this background, the law appears, at least in theory, to offer a more stable, objective forum where baseline rights for vulnerable religious minorities can be vindicated despite populist currents in politics and media (Unger 1986, 1–6). Many Muslim civil society actors have therefore turned to courts as an alternative arena in which to address Islamophobia (Kolankiewicz and Sager 2024, 355–8). Yet nearly a decade on, outcomes are tenuous to say the least. In a majority of high-salience disputes, the "Muslim interest side" has lost, and this often in cases where courts credit Islamophobic assumptions or disregard the specificity of Muslim subject positions in material adjudication. Adverse judgments have sometimes normalized contested practices as lawful, for example, in funding denials to Muslim associations, neutrality policies restricting hijab at work, and the permissibility of Qur'an burnings framed as "religious criticism" (Administrative Court of Appeal in Stockholm 2019; Labour Court 2023; HFD 2022; cf. Brå 2022).

It is therefore interesting to find out if courts are imagined as neutral rights-protecting forums, why do legal strategies so often yield adverse outcomes for Muslims in Sweden, and in some instances entrench the very practices they contest? Is the problem doctrinal (e.g., the fit between anti-discrimination/hate-crime norms and Islamophobia), institutional (judicial discretion, evidentiary thresholds), or conceptual (how law recognizes "religion," "ethnicity," and racialization)? This article explores parts of the capacity of Swedish law to address Islamophobia. We ask: How, and to what extent, does Swedish adjudication incorporate or efface Islamophobia when resolving disputes that structure Muslims' political and religious agency? Empirically, we analyze four litigated "Muslim cases" that implicate existential conditions of Muslim life: public funding for Muslim organizations, defamation of Muslim public figures, workplace neutrality policies restricting hijab, Qur'an burnings, and closure of Muslim private schools. Analytically, we track how Muslimness and Islamophobia feature (or not) in judicial reasoning across administrative, civil, and criminal frameworks.

When it comes to our approach, we draw to a great extent on Critical Legal Studies and Critical Race Theory, which helps us frame and illuminate how law's purported neutrality often individualizes and depoliticizes structurally produced harms (Unger 1986; Bonilla-Silva 1997). We show that features internal to Swedish law, fragmented normative coverage (e.g., "ethnicity" replacing "race" in discrimination law while "religion" remains undefined), the

motive-centric design of hate-crime sentencing, and strong judicial discretion amid sparse statutory guidance, combine with broader social imaginaries to marginalize evidence of Islamophobia in adjudication (Prop. 2007/08:95, 120; Brå 2022, 8, 14). The upshot is a systematic misfit: legal categories and evidentiary practices often fail to register Islamophobia's racialized structure, producing outcomes that appear formally neutral yet substantively disadvantage Muslims (Government Offices of Sweden 2024, 12; HFD 2022; Labour Court 2023).

Structurally and conceptually, we specify the mechanisms through which Swedish law's individualizing grammar and evidentiary conventions under-recognize Islamophobia. Empirically, we synthesize cross-domain case law to identify recurring interpretive moves that sideline Muslimness. Moreover, we sketch implications for doctrine and adjudicative method (e.g., contextual analysis and proportionality that treat Islamophobia as a key factor) by outlining the legal background (anti-discrimination, hate-crime, and freedom of religion), and by exploring the Swedish adjudication in the four case studies.

Methodologically, we conduct a qualitative doctrinal and interpretive analysis of four "Muslim cases" that have been highly mediatized (2016–24). These cases have, beyond their immediate legal claims, concerned Muslims' ability to act as collective and individual agents on equal terms. We define "Muslim cases" as those that test the constraints on Muslim agency while maintaining full Muslimness, and we analyze the interpretive principles courts deploy, whether they acknowledge, engage, or efface Islamophobia and Muslim subjectivity in adjudication. Data include published judgments and authority decisions (case numbers below), party submissions where available, and official policy documents.

LEGAL C0NTEXT

The Swedish legal system lacks a coherent normative approach that subsumes the myriad issues relating to Islamophobia. The term Islamophobia itself is absent from statute and doctrine; searches in the principal legal databases yield only a handful of cases in which litigants invoke the term, and courts ultimately disregard it in their legal reasoning. In other words, Islamophobia is not (yet) a legally operative category in Sweden. In this article we understand Islamophobia as an institutionalized system of anti-Muslim racism that racializes Muslims (and those marked as Muslim) as a securitized, suspect population and organizes their subordination across legal, administrative, and cultural fields; it is rather reproduced through policy, discourse, and practice rather than merely through individual bias (see Bonilla-Silva 1997; Brå 2022; Government Offices of Sweden 2024; Regeringskansliet 2016; Sayyid 2014; Ganesh et al. 2024; Groglopo et al. 2025; see also Aziz and Esposito 2024;)

This definition lets us also connect Sweden's soft-law recognition of structural racism (Regeringskansliet 2016; Government Offices of Sweden 2024) with the hard-law categories actually applied in court, such as, religion, ethnicity, public order, and motive, and to test whether adjudication renders Islamophobia's structural features legally legible or invisible in the "Muslim cases" explored in this analysis. By contrast, Swedish policy instruments are explicit. The National Plan to Combat Racism, Similar Forms of Hostility and Hate Crime (first adopted 2016) defines Islamophobia as "ideologies, beliefs or values that express hostility toward Muslims" (Regeringskansliet 2016, 10). While this phrasing leans toward an idealist account of racism, the Plan nevertheless classifies Islamophobia as a form of racism, itself defined as "views that people, due to assumptions concerning race, national, cultural or ethnic origin, skin colour or other similar circumstances—are essentially different from each other and that therefore can or should be treated in different ways" (Regeringskansliet 2016, 10). The Plan further characterizes racism as structural: racist actions need not be grounded in conscious

political conviction, and can occur unconsciously. This latter move aligns with scholarship that conceptualizes racism as a social structure organizing collectivities and institutions rather than solely as attitudinal prejudice (Bonilla-Silva 1997).

The policy architecture has since been amended twice. First, an Action Program introduced five targeted strands, including one on Islamophobia, with measures in employment and recruitment, education, and online environments (Government Offices of Sweden 2022, 1–2). Despite the Plan's structural framing, the measures emphasize research, education, and dialogue—interventions that primarily address knowledge and attitudes. As several observers note, this emphasis risks reproducing an idealist approach in practice, even as documents acknowledge structural racism in principle.

The second amendment in 2024 resulted in the government's conversion of the National Plan into an Action Plan to align with European Union standards. The Action Plan replaces the term Islamophobia with anti-Muslim racism, defined as "a form of racism directed at Muslims and people who are perceived to be Muslims, for example due to their attire or their name," a change described as semantic rather than substantive (Government Offices of Sweden 2024, 12). In content, the Action Plan continues the earlier orientation: it prioritizes awareness-raising, data collection, and practice guidance across digital environments, and the school, judicial, and welfare systems, as well as the labor market. For the justice sector, it calls for the Police Authority to continue internal revisions to its hate-crime identification work and for the Swedish Prosecution Authority to create a digital network of designated hate-crime prosecutors to share methods and information (Government Offices of Sweden 2024, 51ff.). Remarkably or perhaps tellingly, the Action Plan proposes no legislative changes, and courts are not specifically addressed.

Alongside these policy instruments, the National Council for Crime Prevention (Brå) has operationalized the monitoring of Islamophobic hate crimes. In Brå's usage, Islamophobia functions as a motive category: offenses committed against persons because they are, or are perceived to be, Muslims (Brå 2022, 14). Brå's in-depth study further documents experiences of discrimination and negative treatment, as well as prevalent stereotypes about Muslims (Brå 2022, 8). This usage provides official statistical recognition of anti-Muslim targeting, even though the Criminal Code does not employ the term Islamophobia and courts typically reason with general categories such as "religious belief" or "ethnicity."

Taken together, the soft-law landscape names Islamophobia/anti-Muslim racism and frames it as structural, while the hard-law landscape remains fragmented in how (and whether) that framing is operationalized. In effect, there is no single statutory framework that captures Islamophobia's breadth. Instead, behavior that can reasonably be construed as manifestations of Islamophobia is channeled through adjacent regimes that only partially map onto the phenomenon. Such analytical categories, soft-law recognition and hard-law fragmentation drive two core implications for our analysis and research question. First implication is that although policy documents articulate structural anti-Muslim racism, adjudication typically proceeds through individualized categories, such as discrete discrimination incidents, offender motive in a specific crime, or a particular manifestation of belief. This translation can render Islamophobia's structural features less legally legible. Second implications seem to be that the absence of a statutory category of Islamophobia means courts translate claims into adjacent legal boxes: religion, ethnicity, or public order, thereby shaping what counts as relevant evidence and how legal tests such as proportionality, necessity, and motive are applied.

Against this backdrop, our central question is: How, and to what extent, does Swedish adjudication incorporate or efface Islamophobia when resolving disputes that structure Muslims' political and religious agency? The following subsections outline the relevant hard-law

regimes—anti-discrimination law, hate-crime legislation, and freedom of religion—that structure judicial treatment of disputes involving Muslims in Sweden, and they specify the points at which structural context is most likely to be lost or recognized (see Regeringskansliet 2016; Government Offices of Sweden 2022; Government Offices of Sweden 2024; Bonilla-Silva 1997; Brå 2022). The following sections demonstrate these points more explicitly.

ANTI-DISCRIMINATION LAW

Swedish anti-discrimination law is primarily regulated by the Swedish Discrimination Act (2008:567) (Sweden 2008). The Act is a direct implementation of two European Union directives: the Race Equality Directive and the Employment Equality Directive (Council of the European Union 2000a, 2000b). Its overarching purpose is to give material effect to the principle of equal treatment enshrined in Article 2 of the Treaty of the European Union as well as in Chapter 1, Article 2 of the Instrument of Government (Sweden 1974:152), which constitutes part of the Swedish Constitution (Regeringskansliet 2008, 79).

Much like its European counterparts, the Swedish Discrimination Act provides protection against different forms of differential treatment, which are exhaustively listed in Chapter 1, Section 4 of the law. These forms include direct discrimination, indirect discrimination, inadequate accessibility, harassment, sexual harassment, and instructions to discriminate (Sweden 2008). Direct discrimination occurs where an individual is disadvantaged through less favorable treatment than someone else in a comparable situation, where such disadvantaging is associated with a protected ground. Indirect discrimination, conversely, arises where the application of an ostensibly neutral provision, criterion, or practice puts individuals of a protected ground at a particular disadvantage, unless the provision, criterion, or practice pursues a legitimate aim, and the means employed are appropriate and necessary in the process of achieving said aim. The protected grounds under the Discrimination Act are sex, transgender identity or expression, ethnicity, disability, sexual orientation, and age (Sweden 2008). The term "ethnicity" replaced the previously employed "race" when the Discrimination Act was adopted in 2009 (Regeringskansliet 2008, 120).

According to the *travaux préparatoires* (preparatory work), the legislature argued that using the word "race" in statutory language could confer legitimacy to racist notions and contribute to entrenching race as an existing category (Regeringskansliet 2008, 120). The purpose behind the change was, however, not to change the material scope of the protection since such an order would contravene the Race Equality Directive, which protects against discrimination on the grounds of both ethnicity and race; the latter understood as a social category. Instead, the Swedish approach was to extend the definition of ethnicity to cover national or ethnic origin, skin color or "other similar circumstances," pinpointed in the preparatory works to offer protection against

> unfounded notions of "race," the use of sweeping references to perceptions regarding the characteristics, appearance or background of "immigrants" as a basis for conduct, or … the justification of disadvantaging actions by reference to derogatory designations of persons of foreign or Swedish background (Regeringskansliet 2008, 120).

As regards the protection against discrimination on the grounds of religion, the Discrimination Act does not provide a definition of the term "religion." According to the Court of Justice of the European Union, the term "religion" in Article 1 of the Equality Directive has the same meaning and scope as it does under Article 9 of the European Convention on Human Rights (Court of Justice of the European Union 2017, paragraph 28).

The Discrimination Act does not protect against discriminatory treatment from all actors. The scope of the act is limited to the specific areas of life provided in the legislation, including employment, education, access to goods and services, healthcare and social security, functions, and participation in labor organizations. Notably, however, the Discrimination Act does not extend to actions undertaken by public officials, including law enforcement authorities (Regeringskansliet 2008, 79, 120).

HATE-CRIME LEGISLATION

Swedish hate-crime legislation consists of three laws: the criminalization of the two substantive crimes "unlawful discrimination" and "agitation against a national or ethnic group" in Chapter 16, Sections 8 and 9 of the Swedish Criminal Code (1962, 700) respectively, and Chapter 29, Section 2, Point 7 of the Criminal Code, which provides that any substantive crime committed with the intent to harm a person, ethnic group, or any other group on the basis of race, color, national or ethnic origin, religious belief, or any similar characteristic, constitutes an aggravating circumstance in the assessment of the crime's penal value (Sweden 1962). In other words, hate crime in Sweden primarily functions as a sentencing enhancement regime.

The introduction of general provisions on aggravating circumstances in sentencing through Chapter 29, Section 2, which predates the specific inclusion in Point 7 of hateful motives as aggravating circumstance by just a few years, was, according to the *travaux préparatoires*, chiefly motivated by arguments of efficacy: the aim was to harmonize and systematize judicial sentencing practices, which had hitherto been left almost entirely to the discretion of the individual judge, in turn leading to a considerable unpredictability in the application of penal provisions (Regeringskansliet 1988, 40). The rationale for incorporating racist motives as aggravating circumstances, however, was based on the perceived need to highlight the particular reprehensibility of such crimes since, according to the legislator, crimes committed with a hate-crime motive "threaten fundamental democratic principles and values, including the principle of the equal worth of all human beings" (Regeringskansliet 1994, 22ff).

The integration of the hate-crime provision within the broader sentencing framework has given rise to significant evidentiary challenges. Motive-based criminality is, by and large, a foreign concept to Swedish law. One of the key challenges presented by such an order is that it imposes an additional burden on the prosecutor, who is now required to establish not only that the alleged was committed (*actus reus*) and the perpetrator's requisite intent (*mens rea*) but also demonstrate the motive behind the offense (Granström and Åström 2017, 47). And while intent—which concerns the perpetrator's purpose in committing the act or their knowledge of its consequences—can often be inferred from objective circumstances, the pathway between the motive and the perpetrator's internal mental processes is more immediate and therefore less susceptible to objective reconstruction (Brax 2019, 42–3). Neither the statutory text, *travaux préparatoires*, nor case law provides a definition of what constitutes a motive, let alone a hateful one. Absent a uniform understanding, there exists significant ambiguity regarding which factors and circumstances are relevant in establishing the presence of a hate-crime motive. Case law in the area is, at best, inconsistent. According to a research study *Lifecycle of a Hate Crime*, conducted by Görel Granström and Karin Åström at Umeå University, a majority of judges interviewed on the issue appear to hold the view that only circumstances directly connected to the criminal act itself may be considered when constructing a motive, such as whether the perpetrator made racist or otherwise hateful statements in conjunction with committing the offense (Granström and Åström 2017, 65). Such a construction was made in the Klippan case, where the court paid attention to the fact that the two perpetrators had shouted

racist slurs and performed Nazi salutes during the murder of an 18-year-old Black asylum seeker (NJA 1996, s. 509).

In contrast, the study indicates that a significantly larger proportion of police officers and prosecutors agree that circumstances not directly related to the moment of the criminal acts' fulfillment may be relevant, including, for example, the suspect's background, lifestyle, and ideological affiliations (Granström and Åström 2017, 56). A particularly contentious issue in this regard has been to what extent membership in a racist or similar organization should be considered when assessing the motive of a perpetrator. In the Klippan judgment, the court disregarded the circumstance that the two perpetrators had close ties to neo-Nazi militant organizations, casting doubt on whether or not the perpetrators would have been found guilty of a hate crime based solely on their political affiliation (NJA 1996 s. 509).

FREEDOM OF WORSHIP

The right to freedom of religion is enshrined in Chapter 2, Section 1, Point 6 of the Instrument of Government, which guarantees everyone the freedom to practice one's religion alone or with others, in relation with public institutions. Unlike other rights protected by the article, freedom of religion may not be restricted by law (Chapter 2, Section 20). The reason for this special protection lies in its narrow definition. Unlike Article 9 ECHR, Swedish constitutional freedom of worship covers only *forum internum*, i.e., the right to be religious (or not). Religious expressions falling under other freedoms of opinion in Chapter 2, Section 1—such as freedom of expression—are adjudicated under that freedom and may be restricted in accordance with Chapter 2, Sections 21–4. Wearing a hijab or similar clothing, including a *burqa* or *niqab*, has thus been considered under freedom of expression (HFD 2022, nos. 4120–21, para. 25; 4266–21, para. 28). The limited scope reflects the historically weak position of religions other than the state church and aims to prevent a re-centralization without constitutional amendment (Bull and Sterzel 2022, 70). The principal function of freedom of worship in Swedish law is therefore to prohibit the legislature from enacting laws that prescribe differential treatment on the basis of religion (Bull and Sterzel 2022). In practice, since Sweden has incorporated the European Convention on Human Rights, the main national protection against infringements on freedom of religion stems from Article 9 ECHR. Note that EU neutrality cases address employers' internal rules in the private sector (Directive 2000/78/EC), whereas Swedish public-law limits trigger constitutional review under the Instrument of Government alongside ECHR Article 9. Accordingly, Court of Justice of the European Union (CJEU) case law is used here by analogy rather than as binding constitutional authority (Council of the European Union 2000b; Court of Justice of the European Union 2017; Sweden 1974).

This means that by relegating Muslim practice to adjacent freedoms and applying general limitation tests, adjudication can bracket the specificity of Muslim embodied observance (e.g., hijab as covenantal practice) and evaluate restrictions through ostensibly neutral categories such as "public order" or "workplace neutrality." This doctrinal routing facilitates decisions that appear formally even-handed while obscuring Islamophobia's structural role in generating the conflict and in setting the evidentiary thresholds for justification. In the next section, we will demonstrate some of these dynamics through a number of case studies.

CASE STUDIES

Since the late 2010s, Swedish courts have increasingly been asked to adjudicate highly mediatized disputes we refer to as "Muslim cases." The label does not hinge on the parties'

religious identity; thousands of matters would qualify on that basis alone, but on the fact that these disputes implicate Muslims' ability to exist as fully realized political subjects with equal dignity, rights, and living conditions. The cases are "Muslim" insofar as they concern constraints on Muslim existence while retaining Muslimness.

Only a minority of these disputes are adjudicated under legal norms expressly relevant to minorities (hate crime, anti-discrimination, or freedom of religion). Most are processed through ostensibly neutral frameworks (e.g., defamation, administrative legality, procedural principles) not designed to register Islamophobia or Muslim political subjectivity in the material assessment. Litigants on the "Muslim interest side," usually, but not exclusively, plaintiffs, must therefore translate racialized and religious dimensions into categories the law recognizes. Our analysis evaluates (i) the interpretive methods courts deploy and (ii) the extent to which Islamophobia and Muslimness are acknowledged, engaged, or effaced in judicial reasoning.

One case is concerned with the legalization of Muslim political activism that can be traced to Sveriges Unga Muslimer (SUM) and its challenges to the Swedish Agency for Youth and Civil Society (MUCF) from 2016 onward. The main issue here was that MUCF rejected public funding (commonly distributed to civil society organizations) on the grounds that SUM failed to respect "the ideas of democracy." The decision was unusually reliant on opinion media and social media rather than the organization's internal materials. In the Administrative Court, MUCF added alleged proximity to "extremist environments" (the "Muslim Brotherhood"), citing a contested and contentious report (MUCF 2018). The core question here was whether MUCF's grounds were sufficiently concrete, challengeable, and verifiable to justify denial of funding to SUM under the Regulation on State Grants to Child and Youth Organizations (Sweden, 1974, ch. 1, §9). A lower court's decision, which upheld MUCF's defunding of SUM, was, in the second round of court arbitration, annulled and remitted. MUCF again denied funding (and sought repayments), now anchored in a bespoke "Islamism" dossier. The Administrative Court again sided with SUM, but the Administrative Court of Appeal reinstated MUCF's denial, not on proven Muslim Brotherhood ties, which were deemed "too vague," but by re-weighting SUM's repeated invitations of public speakers who were deemed as anti-democratic as a pattern incompatible with the democracy requirement, despite later cancellations. SUM thereafter declared bankruptcy and effectively disbanded (Administrative Court in Stockholm 2017; Administrative Court in Stockholm 2019; Administrative Court of Appeal in Stockholm 2019; Poljarević 2026).

One important outcome here and in other cases shows how heuristics about "Islamism" entered adjudication and how a formally neutral standard (democracy requirement) can efface Islamophobia's role in shaping the evidentiary pipeline and burden allocation.

Another case is that of two prominent Muslim women civil rights activists, who had sued the Chair of Gothenburg's Municipal Executive Board for defamation. The defamation accusation was presented after blog posts in 2018 labeled them "extremists" and "non-democrats," compared them to "Nazis and fascists," and claimed they had "defended terrorists" and "dismissed actions against fighters of the Islamic State." The posts followed the municipality's cancellation of a panel with the activists, a decision later criticized by the Parliamentary Ombudsman. The District Court treated the "extremist/non-democrat/Nazi" statements as value judgments outside defamation's scope; it deemed the "defended terrorists" claim a factual assertion but justified in context because the plaintiffs were public figures engaged in a high-stakes debate. The Court of Appeal subsequently classified all statements as value judgments within robust political speech, emphasizing the plaintiffs' self-presentation as spokespersons for parts of Muslim civil society and thus their exposure to severe criticism (Göteborg District Court 2020). This means that the fact/value distinction and a universalist free-speech frame

enabled courts to normalize extremization tropes about Muslims while remaining formally within constitutional boundaries, thereby effacing structural Islamophobia in the analysis of reputational harm.

Yet another set of cases important to mention are the 2022–3 Qur'an-burning stunts performed by far-right actors, notably Danish-Swedish politician Rasmus Paludan and, later, Iraqi asylum seeker Salwan Momika. Their performative stunts were often situated close to mosques, in Muslim-dense areas, and on holy days, explicitly aiming to provoke Muslim citizens in Sweden. A number of official government statements condemned the acts as offensive but characterized them as protected expressions of free speech. Prosecutors often declined to proceed with charging the provocateurs in cases where the burning of the Qur'an alone was treated "in itself" as religious critique outside the legal framework of "agitation against a population group" (*hets mot folkgrupp*), an illegal act in Swedish legal code. In one case, however, charges were filed where the burning was accompanied by wrapping pages in bacon at a mosque entrance and broadcasting the anti-Muslim song "Remove Kebab," associated with genocidal imagery, here the totality of circumstances anchored the charge (Brå 2022). This case also demonstrates a moment-bound approach to motive/contempt (focusing on slurs at the scene), which effectively tends to strip away context, target selection, timing (Ramadan/Eid), staging, and semiotics, and as such, effacing Islamophobia as the animating structure of the act.

An additional case is actually a series of cases which include the closure of Muslim private (so-called free-) schools. Following years of intense media scrutiny of Muslim schools in Sweden, which featured allegations of gender-segregated classrooms, "Sharia instruction," and staff ties to "Islamism" or terrorism, the Education Act (2010, 800) was amended in 2019 to authorize the Swedish Schools Inspectorate to revoke a proprietor's authorization where the proprietor or persons in its ownership/management chain are deemed "unsuitable." Since then, the Inspectorate has closed 25 schools on suitability grounds, 22 of which were either Muslim schools or had an unofficial Muslim profile; eight closures followed information from the Swedish Security Service (SÄPO) alleging risks of radicalization (government policy context summarized in Government Offices of Sweden 2024; Gustafsson Figueroa 2024; Asker 2023). In the Tidö Agreement (signed between Governing coalition parties and far-right Sweden Democrats on October 14, 2022), Muslim schools were explicitly designated a problem area, and the Inspectorate was instructed to intensify supervision of schools with a confessional orientation or an orientation "assumed to involve issues related to extremism and Islamism" (Ministry of Education 2023). Under the 2023 regulatory letter, the Inspectorate was further tasked with

> strengthening its supervision and other forms of review of schools with a confessional orientation and other schools where the Inspectorate assesses a risk related to extremism and Islamism, or where students are otherwise exposed to influence that aims to undermine fundamental freedoms and rights or the democratic system of governance (Government Offices of Sweden 2024).

One of the closed schools was Cordoba International School in Stockholm. The Inspectorate revoked the authorization of its proprietor, ALM Education AB (ALM), to operate the preschool, primary school, and after-school care on the basis that the ownership and management group was unsuitable under the Education Act. The decision relied on a SÄPO report asserting that several preschool employees and board members had contact with "violent Islamists" and that one individual had previously been involved with an Islamist terror organization abroad (Administrative Court 2024). The report also stated that SÄPO possessed

(classified) information indicating that several children of "violent Islamists" attended the school and, in light of these points, concluded that children and youth there were at risk of radicalization and exposure to "undemocratic values."

ALM appealed to the Administrative Court in Stockholm, which heard the case in April 2024 and overturned the revocation (Administrative Court in Stockholm 2024). The principal issue was whether the Inspectorate's factual submissions were sufficiently concrete to support a finding that students risked exposure to influences aimed at undermining fundamental freedoms and rights or the democratic system of governance under Chapter 2, Section 5 b of the Education Act: "Section 5b" vs "Section 5 b." Emphasizing that revocation is an intrusive measure with significant consequences, the Court held that rule-of-law standards require a high burden of proof. It found the alleged risks insufficiently concrete per the *travaux préparatoires*: while SÄPO's overall assessment was concerning, the underlying circumstances were too vague and inconclusive, with no identification of which ownership/management individuals were implicated, when contacts with violent Islamists occurred, in what context, or how those contacts posed a specific risk to students. Characterizing the evidence as "scant," the Court upheld ALM's appeal.

Just like it was the case before with MUCF's decision *vis-à-vis* SUM, on further appeal, the Administrative Court of Appeal in Stockholm overruled the lower court's judgment and upheld the Inspectorate's revocation (Administrative Court of Appeal in Stockholm 2024; Poljarevi). In contrast to the first-instance, the appellate court held that SÄPO need not identify specific owners/managers or timeframes because the nature of intelligence operations can preclude public disclosure or the burden of concrete evidence. It further reasoned that SÄPO's (classified) conclusions were of such seriousness that the risk should be treated as "concrete enough." In weighing the limited information provided, however, the Court did not explicitly balance (i) the proprietor's interest in retaining authorization, (ii) the welfare of the children, or (iii) the rights to freedom of religion and association, despite the plaintiff's submissions on those points. This is just one of eight cases which were almost identical in procedure and legal reasoning.

Here we can speak about security elasticity. This elasticity is manifested in the first-instance review, which insisted on "concrete, challengeable facts" proportional to the intrusiveness of school closure. On appeal, however, generalized intelligence assessments were treated as "concrete enough," with limited disclosure and without explicit balancing of children's welfare, freedom of religion, or freedom of association. In practice, the appellate approach legalized ambient suspicion, a discursive environment in which "Muslim school" already carries risk connotations, without naming the Islamophobic epistemics that produce that suspicion. The outcome reinforces how secrecy-deference, when combined with background securitization of Muslims, can transform conjecture into a lawful sanction.

C0NCLUSI0N

This article opened with a practical puzzle: if courts are imagined as neutral forums for the protection of rights, why have legal strategies in Sweden so often yielded adverse outcomes for Muslims—and, at times, consolidated the very practices being challenged? We approached that question by distinguishing doctrinal, institutional, and conceptual mechanisms through which adjudication can either register or efface Islamophobia when resolving disputes that shape Muslims' public agency.

Our analyses across four domains—public funding for Muslim organizations, defamation of Muslim public figures, Qur'an burnings, and the closure of Muslim private

schools—suggest that these losses are not episodic. They track a systematic misfit between the structural operation of Islamophobia and the law's individualizing grammar (see Unger 1986; Bonilla-Silva 1997). That misfit is intensified by fragmented hard-law silos (discrimination, hate speech, freedom of religion), thin statutory guidance (especially on hate-crime motive), and broad judicial discretion exercised within securitized social imaginaries (Regeringskansliet 2016; Government Offices of Sweden 2024; Brå 2022).

Across these domains, adverse outcomes recur through three interpretive tendencies, (1) translating structurally produced anti-Muslim harm into individualized legal boxes, (2) conceptualizing "religion" primarily as individualized belief or expression rather than racialized targeting, and (3) evaluating contested practices "in themselves" by stripping away staging, audience, and context.

These tendencies reflect three recurrent misalignments, or analytical blind spots in Swedish legal praxis vis-à-vis Islamophobia. First, structural under-recognition: racialized governance is translated into facially neutral legal boxes that filter out group-level harm and make structural patterns difficult to litigate as legally salient. The SUM litigation is exemplary. A formally neutral "democracy" requirement was applied, while ambient "Islamism" heuristics shaped the evidentiary horizon of what counted as relevant, what was treated as self-evident, and where uncertainty was placed.

At first instance, the court demanded *konkretiseringskrav* (concrete, challengeable particulars) proportionate to the intrusiveness of the measure; on appeal, the court accepted a "pattern" theory of invitations and treated the Muslim Brotherhood's alleged nature and democratic incompatibility as effectively self-evident, with limited record-based evidentiary development, thereby validating a suspicion-driven evidentiary pipeline seeded outside the adjudicative materials (Administrative Court in Stockholm 2017; Administrative Court in Stockholm 2019; Administrative Court of Appeal in Stockholm 2019).

Second, juridical claim of colorblindness of religion, which shows across several disputes. For instance, courts conceptualize 'religion' as individualized belief, expression, or symbol, and thereby hesitate to treat anti-Muslim targeting as a form of racialization with predictable, group-specific patterns of harm. This becomes visible in defamation litigation, where courts classified "extremist/non-democrat/Nazi" tropes as robust political value judgments and stressed plaintiffs' "voluntary" entry into public debate. The result is not simply a high threshold for liability; it is the normalization of heightened exposure to reputational devaluation for Muslim advocates, while the social function and patterned operation of "extremization" remain largely unexamined (Göteborg District Court 2020; Court of Appeal for Western Sweden 2021; Nilsson 2019; Abdullahi 2024).

Third, context-stripping adjudication in which courts and prosecutors often collapse meaning into an isolated act and evaluate it "in itself" (*i sig*), reading out the social cues through which group-directed contempt and subordination are communicated. This is most visible in Qur'an-burning cases. Treating burning "in itself" as religious critique or symbol-targeting brackets the very features by which contempt is staged and transmitted in locations near mosques and in Muslim-dense areas, calendrical significance (Ramadan/Eid), the choreography of livestreams and police cordons, and iconography such as the "Remove Kebab" soundtrack and related visual cues (Brå 2022; Linköping District Court 2023).

A related form of context-stripping appears in school closures. Here, an insistence on concrete particulars at first instance gave way on appeal to intelligence-based risk characterizations deemed "concrete enough," with secrecy functioning as a partial proof substitute and the *proportionalitetsbedömning* (proportionality assessment), including explicit weighing against children's welfare and freedoms of religion and association, all of which were left underdeveloped.

Across these domains, a recurring pattern emerges: Islamophobia's collective structure such as racialized ascriptions, securitizing scripts, and institutional path-dependencies is repeatedly re-cast as individualized questions (a single invitation, a single blog post, a single "act in itself") and decided without the context that gives those acts their social meaning. The consequence is not merely a high loss rate for the "Muslim interest side," but the juridical normalization of defunding of Muslim civil society organizations, defamatory extremization, "religious-critique" burnings, and intelligence-based school closures as lawful practices. Once upheld, or left undisturbed, these practices acquire the ordinary status of legality, shaping future discretion, evidentiary expectations, and the baseline of what institutions can do without sanction.

These findings also clarify several conceptual consequences and significant pitfalls. One being structural under-recognition that helps us explain how legal categories and proof conventions filter out group-level dynamics even as policy documents name anti-Muslim racism as structural (Regeringskansliet 2016; Government Offices of Sweden 2024). Another one is the so-called juridical colorblindness of religion that captures the drift toward culture-only analysis when "race" is absent from statutory language and "ethnicity" is not operationalized in ways that track processes of racialization (Prop. 2007/08:95, 120). And yet another one is context-stripping adjudication that names a mode of *bevisvärdering* (evaluation of evidence) that collapses meaning into an isolated act, which leads to erasing staging, audience, timing, and semiotics, all of which are precisely the cues through which Islamophobia often operates in public life and public discourse (Brå 2022).

Together, these pitfalls help explain why Swedish adjudication frequently effaces Islamophobia when resolving disputes that structure Muslims' political and religious agency. A comprehensive remedy certainly lies beyond our article's scope. However, the analysis supports the conclusion that modest, legally orthodox adjustments could realign adjudication with its own equality commitments while preserving, and also strengthening, rule-of-law discipline, including predictability, contestability, and the basic administrative virtues of *saklighet och opartiskhet* (objectivity and impartiality).

One adjustment that we can mention briefly concerns context. Courts should treat context as legally relevant in proportionality, justification, and meaning analysis. More concretely, a short, disciplined "context section" can record uncontested socio-legal facts relevant to interpretation: documented patterns of anti-Muslim hostility, the semiotics of book burning, and the securitizing discourse around "Islamism," as circumstances bearing on the plausibility of asserted aims, the foreseeability of harms, and the intensity of interference. Where reliable evidence indicates that Islamophobic reasoning plausibly underwrites an asserted aim, that a measure disproportionately burdens Muslims as a group, or that a setting renders Muslims especially vulnerable, adjudicators should recognize interference more readily and require correspondingly more demanding justification from the state or authority (see Trispiotis 2019).

In practice, this implies that when "Islamism" is invoked as endangering democracy, freedom, or other public values, decision-makers should be, at minimum, required to provide source transparency and reliability sufficient to make the claim contestable, and courts should calibrate fact/value and evidence-weighting practices to account for the documented extremization of Muslim voices (e.g., defamation) and the patterned closure or defunding of Muslim organizations and schools. Likewise, in cases involving Qur'an burnings and similar spectacles, adjudicators should integrate the context of audience, location, timing, staging, and semiotics rather than treating the act "in itself" as analytically decisive.

Another adjustment concerns hate-crime motive. Preparatory works and practice guidance for courts, prosecutors, and police should clarify that motive can be proved by cumulative

indicia beyond contemporaneous slurs. Relevant indicia can include prior statements, target selection, affiliations, staging, symbolism, timing, and other context-dependent elements. Confirming that the absence of scene-of-the-crime insults is not dispositive would reduce ad hoc practice and better align adjudication with the provision's preventive *telos* (see Granström and Åström 2017; Brax 2019).

Yet another adjustment concerns administrative evidence under secrecy. Administrative adjudication requires clearer source-vetting and *motiveringskrav* (reasons-giving) when intelligence material is relied upon. Options include disclosure where possible, or a special-advocate/cleared-counsel model, combined with a credibility rubric (methodology, corroboration, error rate) and explicit balancing of countervailing interests such as children's welfare and freedoms of religion and association.

In these adjustments, terminology clearly matters. As noted earlier, the 2024 Action Plan's shift from "Islamophobia" to "anti-Muslim racism" is described as semantic (Government Offices of Sweden 2024, 12), but semantics shape adjudication by shaping which harms become legible as legally relevant. Clarifying, via the *travaux préparatoires* or formal guidance, that "ethnicity" encompasses racialization processes affecting Muslims would help courts avoid culture-only frames and better connect soft-law recognition to hard-law application (Prop. 2007/08:95; Regeringskansliet 2016).

Such reforms also implicate capacity-building for jurists (bench and bar) and civil servants in relevant roles, where doctrinal craft (e.g., standards of proof, contextual analysis, and motive inference) rather than ideological inclination is the operative guide. Research suggests that transparent standards and training can reduce outcome variance linked to implicit bias (see Edelman et al. 2016; Greenwald et al. 1998).

Returning to the research question, does Swedish adjudication incorporate or efface Islamophobia, and to what extent?, our analysis indicates that Islamophobia/anti-Muslim racism most often appears through effacement. Courts routinely miss its structural character via structural under-recognition, juridical colorblindness of religion, and context-stripping adjudication across administrative, civil, and criminal domains. Yet incorporation is possible without abandoning neutrality. Where courts surfaced context, for example; the first-instance insistence on concrete, challengeable facts in SUM, or the Linköping prosecution's treatment of bacon-wrapping and the "Remove Kebab" soundtrack as meaning-laden, adjudication registered racialized harm through ordinary legal methods rather than exceptional politics.

Is the problem doctrinal, institutional, or conceptual? Our findings suggest it is all three in interaction. Doctrinally, fragmented categories and thin guidance invite interpretive gaps (e.g., ambiguity in the motive of hate crime). Institutionally, those gaps expand judicial discretion, which can drift toward common-sense heuristics in a securitized climate, as seen in SUM and the school-closure cases. And conceptually, culture-only understandings of "religion" and reluctance to name racialization blunt recognition of anti-Muslim harm, as illustrated by Qur'an-burning adjudication. In short, we argue that soft law increasingly names the structure, while hard-law practice often loses it in translation (see Regeringskansliet 2016; Government Offices of Sweden 2024; Brå 2022).

It is important to note that our corpus comprises litigated, public disputes, including secrecy constraints (e.g., SÄPO material in school cases) and prosecutorial screening decisions limit observational depth. We therefore refrain from making claims about non-litigated regulatory practice and treat intelligence assertions with a high dose of caution unless supported by concrete particulars.

What we can say, based on the cases analyzed, is that courts and lawmakers should (i) develop motive guidance recognizing cumulative indicia; (ii) tighten administrative

source-vetting and reasons-giving under secrecy; and (iii) clarify that "ethnicity" in Swedish law encompasses anti-Muslim racialization. Each adjustment answers a blind spot. For example, a context-sensitive method counters context-stripping; motive guidance disciplines discretion; and strengthened reasons-giving under secrecy mitigates risk-assertion substituting for proof.

It is important to note that these steps do not collapse law into politics. On the contrary, such steps strengthen the rule-of-law conditions under which law can remain as neutral as possible in method without neutralizing the harms at issue. With this assessment, we do not claim completeness. Our analysis, at the very least, offers an initial map that might help guide implementation and future case law. For instance, neutrality is not compromised by context; instead, it is compromised when context is selectively ignored.

For us, the point is not that courts "cause" Islamophobia, but that ill-informed legal method can (unless it is disciplined) make structural harm harder to see, harder to prove, and therefore easier to reproduce. We argue that with modest doctrinal clarification and procedural craft, Swedish courts can more reliably register Islamophobia's legal salience when disputes determine Muslims' ability to act as legitimate civic collective and individual actors in Swedish society.

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